

STATE OF NEW YORK

5067--A

Cal. No. 1159

2025-2026 Regular Sessions

IN SENATE

February 18, 2025

Introduced by Sens. SEPULVEDA, GOUNARDES, PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, the correction law, the administrative code of the city of New York, the civil service law, the executive law, the labor law, the parks, recreation and historic preservation law, the social services law and the state finance law, in relation to changing the name of the general education development diploma to the Excelsior diploma

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 317 of the education law, as added by chapter 170 of the laws of 1994, is amended to read as follows:

§ 317. [~~General education development~~] Excelsior diploma exam. Notwithstanding any provision of law, no fee shall be established for admission to the [~~general education development~~] Excelsior diploma exam.

§ 2. Section 305 of the education law is amended by adding a new subdivision 63 to read as follows:

63. The commissioner shall promulgate rules and regulations to change the name of the state high school equivalency diploma, as established pursuant to section 100.7 of title eight of the New York codes, rules and regulations, to the Excelsior diploma.

§ 3. Subdivision 19 of section 2 of the correction law, as amended by chapter 322 of the laws of 2021, is amended to read as follows:

19. "Vocational and skills training facility" means a correctional facility designated by the commissioner to provide a vocational and skills training program ("VAST") to incarcerated individuals who need such service before they participate in a work release program. The VAST facility shall provide intensive assessment, counseling, job search assistance and where appropriate academic and vocational instruction to program participants. Such assistance may include an assessment of any incarcerated individual's education attainment level and skills apti-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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tudes; career counseling and exploration; the development of a comprehensive instructional plan including identification of educational and training needs that may extend beyond the date of entry into work release; instructional programs including ~~[GED]~~ Excelsior diploma preparation or post-secondary instruction as appropriate; occupational skills training; life skills training; employment readiness including workplace behavior; and job search assistance. The department and the department of labor shall jointly develop activities providing career counseling, job search assistance, and job placement services for participants. Nothing contained in this section shall be deemed to modify the eligibility requirements provided by law applicable to incarcerated individuals participating in a work release program.

§ 4. The seventh undesignated paragraph of subdivision a of section 9-151 of the administrative code of the city of New York, as added by local law number 168 of the city of New York for the year 2017, is amended to read as follows:

~~[High school equivalency diploma]~~ Excelsior diploma test. The term "~~[high school equivalency diploma]~~ Excelsior diploma test" means any test offered by the New York state education department for the purpose of establishing the equivalent of a high school diploma, including, but not limited to, a general education development test or the test assessing secondary completion.

§ 5. Subdivision a of section 21-408 of the administrative code of the city of New York, as added by local law number 86 of the city of New York for the year 2018, is amended to read as follows:

a. Definitions. For the purposes of this section, the term "test assessing secondary completion (TASC)" means the ~~[New York state high school equivalency]~~ Excelsior diploma test which replaced the General Education Development (GED) as the primary pathway to ~~[a New York state high school equivalency]~~ an Excelsior diploma.

§ 6. Subdivision b and paragraph 4 of subdivision c of section 21-703 of the administrative code of the city of New York, as added by local law number 23 of the city of New York for the year 2003, are amended to read as follows:

b. If an applicant, recipient or participant who is eligible for education or training as set forth in subdivision c of this section expresses an intention or preference to the agency to enroll in education, training or vocational rehabilitation, or if an applicant's, recipient's or participant's assessment indicates that ~~[he or she]~~ such applicant, recipient or participant lacks basic literacy, a secondary school diploma, or ~~[a general equivalency]~~ an Excelsior diploma ~~[(GED)]~~ or otherwise indicates that education, training or vocational rehabilitation would enhance the individual's ability to obtain and maintain employment, then the agency shall offer such applicant, recipient or participant the opportunity to enroll in an approved program or programs, provided that such approved program or programs can be classified as countable work activities.

4. An applicant, recipient or participant is eligible to participate in ~~[a GED]~~ an Excelsior diploma program if ~~[s/he]~~ such applicant, recipient or participant has attained basic literacy but has not received a secondary school diploma.

§ 7. The twentieth undesignated paragraph of subdivision a of section 21-902.1 of the administrative code of the city of New York, as amended by local law number 145 of the city of New York for the year 2016, is amended to read as follows:

1 Test assessing secondary completion (TASC). The term "test assessing
2 secondary completion (TASC)" means the ~~[New York state high school
3 equivalency]~~ Excelsior diploma test which replaced the general education
4 development examination as the primary pathway to ~~[a New York state high
5 school equivalency]~~ an Excelsior diploma.

6 § 8. The eleventh undesignated paragraph of subdivision a of section
7 21-924 of the administrative code of the city of New York, as added by
8 local law number 21 of the city of New York for the year 2024, is
9 amended to read as follows:

10 ~~[High school equivalency]~~ Excelsior diploma test. The term "~~[high
11 school equivalency diploma]~~ Excelsior diploma test" means any test that
12 the New York state education department offers for the purpose of estab-
13 lishing the equivalent of a high school diploma, including, but not
14 limited to, a general education development test or the test assessing
15 secondary completion.

16 § 9. Paragraph 5 of subdivision a of section 9-137 of the adminis-
17 trative code of the city of New York, as amended by chapter 322 of the
18 laws of 2021, is amended to read as follows:

19 5. Educational background as self-reported by incarcerated individuals
20 after admission to the custody of the department, categorized as follows
21 based on the highest level of education achieved: no high school diploma
22 or ~~[general education]~~ Excelsior diploma, ~~[a general education]~~ an
23 Excelsior diploma, a high school diploma, some college but no degree, an
24 associate's degree, a bachelor's degree, or a post-collegiate degree.

25 § 10. Subparagraph (iv) of paragraph (d) of subdivision 1 of section
26 803 of the correction law, as amended by section 1 of part EE of chapter
27 56 of the laws of 2025, is amended to read as follows:

28 (iv) Such merit time allowance may be granted when an incarcerated
29 individual successfully participates in the work and treatment program
30 assigned pursuant to section eight hundred five of this article and when
31 such incarcerated individual obtains ~~[a general equivalency]~~ an Excels-
32 ior diploma, an alcohol and substance abuse treatment certificate, a
33 vocational trade certificate following at least six months of vocational
34 programming, at least eighteen credits in a program registered by the
35 state education department from a degree-granting higher education
36 institution or performs at least four hundred hours of service as part
37 of a community work crew. The commissioner may designate additional
38 programs and achievements for which merit time may be granted.

39 Such allowance shall be withheld for any serious disciplinary infrac-
40 tion or upon a judicial determination that the person, while an incar-
41 cerated individual, commenced or continued a civil action, proceeding or
42 claim that was found to be frivolous as defined in subdivision (c) of
43 section eight thousand three hundred three-a of the civil practice law
44 and rules, or an order of a federal court pursuant to rule 11 of the
45 federal rules of civil procedure imposing sanctions in an action
46 commenced by a person, while an incarcerated individual, against a state
47 agency, officer or employee.

48 § 11. Paragraph (b) of subdivision 1 of section 58 of the civil
49 service law, as amended by section 4 of part C of chapter 55 of the laws
50 of 2025, is amended to read as follows:

51 (b) they are a high school graduate or a holder of ~~[a high school
52 equivalency]~~ an Excelsior diploma, issued by an education department of
53 any of the states of the United States or a holder of a comparable
54 diploma issued by any commonwealth, territory or possession of the
55 United States or by the Canal Zone or a holder of a report from the

1 United States armed forces certifying their successful completion of the
2 tests of general educational development, high school level;

3 § 12. Paragraph (b) of subdivision 2 of section 352-a of the educa-
4 tion law, as amended by section 1 of part II of chapter 56 of the laws
5 of 2023, is amended to read as follows:

6 (b) To be eligible to receive such nomination and scholarship, the
7 applicant must be a resident of the state. For purposes of this section,
8 a state resident shall be defined as a person who has resided in the
9 state of New York for a period of at least one year prior to the time of
10 nomination, is a graduate or within one year of graduation from an
11 approved high school or has attained [~~a New York state high school~~
12 ~~equivalency~~] an Excelsior diploma or its equivalent as determined by the
13 commissioner.

14 § 13. Clause (ii) of subparagraph 8 of paragraph h of subdivision 2 of
15 section 355 of the education law, as amended by chapter 669 of the laws
16 of 2022, is amended to read as follows:

17 (ii) attended an approved New York state program for [~~general equiv-~~
18 ~~alency~~] an Excelsior diploma exam preparation, received [~~a general~~
19 ~~equivalency~~] an Excelsior diploma issued within New York state and
20 applied for attendance at an institution or educational unit of the
21 state university within five years of receiving [~~a general equivalency~~]
22 an Excelsior diploma issued within New York state; or

23 § 14. Subdivision 2 of section 610 of the education law, as added by
24 chapter 425 of the laws of 1988, is amended to read as follows:

25 2. Eligibility for scholarship. Liberty scholarships shall be awarded
26 to persons:

27 a. who have applied for such scholarship;

28 b. who have graduated from a secondary school located within New York
29 state or have received [~~a high school equivalency~~] an Excelsior diploma
30 from New York state;

31 c. who have not attained the age of twenty-two as of June thirtieth
32 prior to the academic year for which the initial award is received and
33 who are undergraduate students receiving aid under this chapter for the
34 first time during academic year nineteen hundred ninety-one--nineteen
35 hundred ninety-two or thereafter;

36 d. who have enrolled in an approved program in a degree-granting
37 institution located in New York state within twenty-four months of the
38 date that the recipient graduated from secondary school or received [~~a~~
39 ~~high school equivalency~~] an Excelsior diploma, provided that those
40 students who are temporarily unable to avail themselves of the award due
41 to illness, military service or other causes in accordance with rules of
42 the board of regents prior to receipt of the first payment of an award
43 may be granted a leave of absence pursuant to regulations of the trus-
44 tees of the higher education services corporation;

45 e. who satisfy the requirements of section six hundred sixty-one of
46 this [~~chapter~~] title;

47 f. who retain good academic standing as defined by the commissioner;
48 and

49 g. who qualify for a scholarship pursuant to subdivision six of this
50 section.

51 § 15. Subparagraph 7 of paragraph b of subdivision 1 of section 612 of
52 the education law, as added by chapter 425 of the laws of 1988, is
53 amended to read as follows:

54 (7) the degree to which the institution proposes to cooperate with
55 school districts and not-for-profit community based organizations to
56 provide services and insure continuity of such services until such

1 students graduate from high school or receive [~~a high school equivalen-~~
2 ~~ey~~] an Excelsior diploma.

3 § 16. Clause (b) of subparagraph (ii) of paragraph a of subdivision 5
4 of section 661 of the education law, as amended by chapter 26 of the
5 laws of 2019, is amended to read as follows:

6 (b) attended an approved New York state program for [~~a state high~~
7 ~~school equivalency~~] an Excelsior diploma, received [~~a state high school~~
8 ~~equivalency~~] an Excelsior diploma and applied for attendance at the
9 institution of higher education for the undergraduate study for which an
10 award is sought within five years of receiving [~~a state high school~~
11 ~~equivalency~~] an Excelsior diploma; or

12 § 17. Subdivision 2 of section 679-g of the education law, as added by
13 section 1 of part C of chapter 56 of the laws of 2015, is amended to
14 read as follows:

15 2. Eligibility. To be eligible for an award pursuant to this section,
16 an applicant shall: (a) have graduated from a high school located in New
17 York state or attended an approved New York state program for [~~a state~~
18 ~~high school equivalency~~] an Excelsior diploma and received such [~~high~~
19 ~~school equivalency~~] diploma; (b) have graduated and obtained an under-
20 graduate degree from a college or university with its headquarters
21 located in New York state in or after the two thousand fourteen--fifteen
22 academic year; (c) apply for this program within two years of obtaining
23 such degree; (d) be a participant in a federal income-driven repayment
24 plan whose payment amount is generally ten percent of discretionary
25 income; (e) have income of less than fifty thousand dollars; (f) comply
26 with subdivisions three and five of section six hundred sixty-one of
27 this part; and (g) work in New York state, if employed. For purposes of
28 this program, "income" shall be the total adjusted gross income of the
29 applicant and the applicant's spouse, if applicable.

30 § 18. Subdivision 5 of section 3622-a of the education law, as amended
31 by chapter 422 of the laws of 2004, is amended to read as follows:

32 5. Transportation of pupils during the school day to and from programs
33 at a board of cooperative educational services or to or from approved
34 shared programs at other school districts, which programs may lead to a
35 diploma or [~~a high school equivalency~~] an Excelsior diploma or to or
36 from career education programs operated within the district;

37 § 19. Subdivision 1 of section 6451 of the education law, as amended
38 by chapter 917 of the laws of 1970, is amended to read as follows:

39 1. To advance the cause of educational opportunity in higher educa-
40 tion, the commissioner may contract with non-public institutions of
41 higher education for the support of special programs for the screening,
42 testing, counseling, tutoring of, and, assistance to, residents of the
43 state who are, (1) graduates of an approved high school or individuals
44 who have attained [~~a New York state high school equivalency~~] an Excels-
45 ior diploma or its equivalent, as determined by the commissioner, (2)
46 who have potential for the successful completion of a post secondary
47 program, and (3) are economically and educationally disadvantaged, as
48 defined by the regents.

49 § 20. Subdivision 1 of section 6452 of the education law, as added by
50 chapter 917 of the laws of 1970, is amended to read as follows:

51 1. To provide additional educational opportunity at the state univer-
52 sity of New York and the city university of New York, such institutions
53 shall provide special programs for the screening, testing, counseling,
54 and tutoring of, and assistance to, residents of the state who are, (1)
55 graduates of an approved high school or individuals who have attained [~~a~~
56 ~~New York state high school equivalency~~] an Excelsior diploma or its

equivalent, as determined by the commissioner, (2) who have potential for the successful completion of a post secondary program, and (3) are economically and educationally disadvantaged.

§ 21. Clause 2 of subparagraph (ii) of paragraph (a) of subdivision 2 and clause 2 of subparagraph (ii) of paragraph (a) of subdivision 3 of section 6455 of the education law, as amended by chapter 26 of the laws of 2019, are amended to read as follows:

(2) attended an approved New York state program for [~~a state high school equivalency~~] an Excelsior diploma, received [~~a state high school equivalency~~] an Excelsior diploma and applied for attendance at the institution of higher education for the undergraduate study for which an award is sought within five years of receiving [~~a state high school equivalency~~] an Excelsior diploma; or

(2) attended an approved New York state program for [~~a state high school equivalency~~] an Excelsior diploma, received a state [~~high school equivalency~~] diploma and applied for attendance at the institution of higher education for the graduate study for which an award is sought within ten years of receiving [~~a state~~] an Excelsior [~~high school equivalency~~] diploma; or

§ 22. Subdivision 4 of section 532-d of the executive law, as amended by section 5 of part M of chapter 56 of the laws of 2017, is amended to read as follows:

4. for a homeless youth whose service plan involves independent living, provide practical assistance in achieving independence, either through direct provision of services or through written agreements with other community and public agencies for the provision of services in the following areas; high school education or [~~high school equivalency education~~] an Excelsior diploma; higher education assessment; job training and job placement; counseling; assistance in the development of socialization skills; guidance and assistance in securing housing appropriate to needs and income; and training in the development of skills necessary for responsible independent living, including but not limited to money and home management, personal care, and health maintenance; and

§ 23. Subdivision 15 of section 42 of the labor law, as added by section 6 of part E of chapter 389 of the laws of 1997, is amended to read as follows:

15. Notwithstanding any other law, rule or regulation to the contrary, the department shall prepare and submit to the governor, the temporary president of the senate, the speaker of the assembly and the chair of the legislative commission on skills development and vocational education, an annual evaluation report of this program no later than October thirty-first following the end of the program year. The report shall include a statement of program objectives which identifies outcomes and indicators of the effectiveness of the program. It shall represent the extent to which program activities meet program objectives including, but not limited to, improvements in participants' educational competencies and employability skills as measured by accepted testing tools. The basic measures of performance for projects for in-school youth shall be: high school retention, attainment of a high school diploma, enrollment in a post-secondary educational program or vocational skills training program, or attainment of unsubsidized employment. The basic measure of performance for projects for out-of-school youth shall be: improvement in basic academic and vocational skills, return to high school, attainment of [~~a high school equivalency~~] an Excelsior diploma, enrollment in a post-secondary educational program or vocational skills training program, or attainment of unsubsidized employment. The report shall

1 include a separate count of participants who have participated in the
2 same program model through more than one program cycle. A methodology
3 shall be prescribed which requires collection of post-program informa-
4 tion on program participants including, but not limited to, whether a
5 participant receives a high school degree or its equivalent and subse-
6 quent labor market experience for one year following termination from
7 the program, and the extent to which the participant achieved outcomes
8 as defined by the certified program model. The report shall also
9 describe the types of support services provided, levels of expenditure,
10 and demonstrate how such support services improve participant involve-
11 ment in local projects.

12 § 24. Subparagraph (iii) of paragraph t of subdivision 4 of section
13 3.23 of the parks, recreation and historic preservation law, as amended
14 by chapter 717 of the laws of 1988, is amended to read as follows:

15 (iii) encouraging corps members to continue studies during non-working
16 hours to complete [~~high school equivalency~~] an Excelsior diploma or
17 college courses or job skill training;

18 § 25. Subdivision 1 and paragraph (b) of subdivision 2 of section 335
19 of the social services law, subdivision 1 as amended by chapter 819 of
20 the laws of 2022, paragraph (b) of subdivision 2 as amended by section
21 148 of part B of chapter 436 of the laws of 1997, are amended to read as
22 follows:

23 1. Each social services official shall ensure that each recipient of
24 public assistance who is a member of a household with dependent children
25 and is eighteen years of age or older, or who is sixteen or seventeen
26 years of age and is not attending secondary school and has not completed
27 high school or [~~a high school equivalency~~] an Excelsior diploma
28 program, receives an assessment of employability based on [~~his or her~~]
29 their educational level, including literacy and English language profi-
30 ciency, basic skills proficiency, child care and other supportive
31 services needs; and skills, prior work experience, training and voca-
32 tional interests. This assessment shall include a review of family
33 circumstances including a review of any special needs of a child and
34 whether home visiting services would be appropriate and beneficial for
35 the family. Such assessment shall be completed within ninety days of the
36 date on which such person is determined eligible for public assistance.
37 An applicant for or recipient of public assistance may be assigned to
38 work activities prior to completion of such assessment.

39 (b) Where an assessment indicates that a participant who is not
40 subject to the education requirements of subdivision four of section
41 three hundred thirty-six-a of this [~~title~~] article has not attained a
42 basic literacy level, the social services official shall encourage and
43 may require the participant to enter a program to achieve basic literacy
44 or [~~high school equivalency~~] an Excelsior diploma or to enter such
45 educational programs in combination with other training activities
46 consistent with the employability plan.

47 § 26. Paragraph (b) of subdivision 2 of section 335-a of the social
48 services law, as amended by section 148 of part B of chapter 436 of the
49 laws of 1997, is amended to read as follows:

50 (b) Where an assessment indicates that a participant who is not
51 subject to the education requirements of this title has not attained a
52 basic literacy level, the social services official shall encourage and
53 may require the participant to enter a program to achieve basic literacy
54 or [~~high school equivalency~~] an Excelsior diploma or to enter such
55 educational programs in combination with other training activities
56 consistent with the employability plan.

§ 27. Paragraphs (j) and (k) of subdivision 1 of section 336 of the social services law, as amended by section 148 of part B of chapter 436 of the laws of 1997, are amended to read as follows:

(j) education directly related to employment, in the case of a recipient who has not yet received a high school diploma or ~~[a certificate of high school equivalency]~~ an Excelsior diploma;

(k) satisfactory attendance at secondary school or a course of study leading to ~~[a certificate of general equivalency]~~ an Excelsior diploma in the case of a recipient who has not completed secondary school or received such certificate;

§ 28. Subdivisions 1 and 2 and the opening paragraph and paragraph (a) of subdivision 4 of section 336-a of the social services law, subdivision 1 as amended by section 1 of part X of chapter 56 of the laws of 2023, subdivision 2 and the opening paragraph and paragraph (a) of subdivision 4 as amended by section 148 of part B of chapter 436 of the laws of 1997, are amended to read as follows:

1. Social services districts shall make available vocational educational training and educational activities. Such activities may include but need not be limited to, high school education or education designed to prepare a participant for ~~[a high school equivalency certificate]~~ an Excelsior diploma, basic and remedial education, education in English proficiency, education or a course of instruction in financial literacy and personal finance that includes instruction on household cash management techniques, career advice to obtain a well paying and secure job, using checking and savings accounts, obtaining and utilizing short and long term credit, securing a loan or other long term financing arrangement for high cost items, participation in a higher education course of instruction or trade school, and no more than a total of four years of post-secondary education (or the part-time equivalent). Educational activities pursuant to this section may be offered with any of the following providers which meet the performance or assessment standards established in regulations by the commissioner for such providers: a community college, licensed trade school, registered business school, or a two-year or four-year college; provided, however, that such post-secondary education must be necessary to the attainment of the participant's individual employment goal as set forth in the employability plan and such goal must relate directly to obtaining useful employment. When making an assignment to any educational activity pursuant to this subdivision, such assignment shall be permitted only to the extent that such assignment is consistent with the individual's assessment and employment plan goals in accordance with sections three hundred thirty-five and three hundred thirty-five-a of this title and shall require that the individual maintains satisfactory academic progress and hourly participation is documented consistent with federal and state requirements. For purposes of this provision "satisfactory academic progress" shall mean having a cumulative C average, or its equivalent, as determined by the academic institution. The requirement to maintain satisfactory academic progress may be waived if done so by the academic institution and the social services district based on undue hardship caused by an event such as a personal injury or illness of the student, the death of a relative of the student or other extenuating circumstances. Participation in an educational and/or vocational training program, that shall include, but not be limited to, a two-year post-secondary degree program, which is necessary for the participant to attain their individual employment goal and is likely to lead to a degree or certification and sustained employment, shall be approved consistent with such indi-

vidual's assessment and employability plan to the extent that such approval does not jeopardize the state's ability to comply with federal work participation rates, as determined by the office of temporary and disability assistance.

2. When a district contracts with a proprietary vocational school to provide vocational educational training to participants, not more than twenty-five percent of the approved duration of the program shall be devoted to preparation for [~~a high school equivalency~~] an Excelsior diploma or instruction in English for students with limited proficiency in English. Participants needing instruction in basic literacy shall be referred to basic education programs. Instructors employed by proprietary schools to prepare a participant for [~~a high school equivalency certificate~~] an Excelsior diploma or for education in English proficiency shall meet experience requirements established by the regulations of the commissioner of education.

To the extent provided in paragraphs (a) through (d) of this subdivision and if resources permit, each social services official shall assign to appropriate educational activities any participant who has not obtained a high school diploma or its equivalent:

(a) In accordance with the provisions of this chapter, any such participant who is under age eighteen shall be required to attend educational activities designed to prepare the individual for a high school degree or [~~equivalency certificate~~] an Excelsior diploma. Participants who are not subject to compulsory school attendance requirements may be exempted from the requirements of this paragraph under criteria established by the department in consultation with the state education department and consistent with federal law and regulations.

§ 29. Section 97-hhh of the state finance law, as added by section 84 of part A of chapter 436 of the laws of 1997, is amended to read as follows:

§ 97-hhh. [~~High school equivalency~~] Excelsior diploma account. 1. There is hereby established in the joint custody of the state comptroller and the commissioner of the department of taxation and finance an account of the miscellaneous special revenue fund to be known as the [~~high school equivalency~~] Excelsior diploma account.

2. Notwithstanding any other law, rule or regulation to the contrary, the state comptroller is hereby authorized and directed to receive for deposit to the credit of the [~~high school equivalency~~] Excelsior diploma account, fees established by the commissioner of education and approved by the director of the budget to supplement administration of the [~~general educational development~~] tests for the [~~high school equivalency~~] Excelsior diploma.

3. Moneys of this account, following appropriation by the legislature, shall be available to the state education department for services and expenses related to the administration of the [~~general educational development~~] tests for the [~~high school equivalency~~] Excelsior diploma.

§ 30. Subdivision 3 of section 97-jjjj of the state finance law, as amended by section 1 of part VV of chapter 57 of the laws of 2010, is amended to read as follows:

3. Moneys of this account, following appropriation by the legislature, shall be available to the state education department for services and expenses relating to state assessments of elementary and secondary school students, including but not limited to the [~~state high school equivalency~~] Excelsior diploma examination. Moneys of this account shall only be available for expenditure pursuant to approval of an expenditure plan by the director of the budget.

§ 31. Subparagraph 1 of paragraph d of subdivision 1 of section 3602 of the education law, as amended by section 11 of part B of chapter 57 of the laws of 2007, is amended to read as follows:

(1) Equivalent attendance shall mean the quotient of the total number of student hours of instruction in programs in a public school of a school district or a board of cooperative educational services leading to a high school diploma or ~~[a high school equivalency]~~ an Excelsior diploma as defined in regulations of the commissioner for pupils under the age of twenty-one not on a regular day school register of the district, divided by one thousand. Average daily attendance shall include the equivalent attendance of the school district. For the purposes of secondary school weighting, such equivalent attendance shall be considered as average daily attendance in grades seven through twelve.

§ 32. Paragraphs a, a-1 and e of subdivision 11 of section 3602 of the education law, paragraph a as amended by chapter 82 of the laws of 1995, paragraph a-1 as amended by section 20-a of part A of chapter 56 of the laws of 2025, paragraph e as amended and such subdivision as renumbered by section 15 of part B of chapter 57 of the laws of 2007, are amended to read as follows:

a. School districts and boards of cooperative educational services (BOCES) providing approved programs shall be eligible for aid in accordance with the provisions of this subdivision for the attendance of persons twenty-one years of age or over who have not received a high school diploma or ~~[a high school equivalency]~~ an Excelsior diploma recognized by New York State who attend employment preparation education programs provided by such school districts or BOCES, which programs lead to a high school diploma or ~~[high school equivalency]~~ an Excelsior diploma as defined in regulations of the commissioner, even if such persons attend regular day school classes with permission of the board of education; provided that such programs are provided in accordance with a plan of service approved by the commissioner in accordance with the provisions of paragraph f of this subdivision. Such programs may operate between July first and June thirtieth of a school year. Whenever a person enrolls in a program approved pursuant to this subdivision offered by a BOCES or in a school district other than their district of residence, the program provider shall send a notice of such enrollment to the persons district of residence, and shall issue a new notice if such person moves from one district to another. In the event that the cost of a program approved and provided in accordance with the provisions of this subdivision exceeds all sources of funds, other than tax levy revenues, which are available to defray such expenses, the school district or BOCES providing such program shall determine an excess cost per contact hour provided during the base year, and then shall determine the local share of such excess costs for each school district whose residents were served by such program by multiplying such base year hours by the excess cost per contact hour, and such local share shall be a charge against each such district, payable within forty-five days. Notwithstanding the provisions of section nineteen hundred fifty of this chapter, a BOCES shall be authorized to provide a program pursuant to this subdivision in the same manner as a school district.

a-1. Notwithstanding the provisions of paragraph a of this subdivision, for aid payable in the school years two thousand--two thousand one through two thousand nine--two thousand ten, and two thousand eleven--two thousand twelve through two thousand twenty-five--two thousand twen-

ty-six, the commissioner may set aside an amount not to exceed two million five hundred thousand dollars from the funds appropriated for purposes of this subdivision for the purpose of serving persons twenty-one years of age or older who have not been enrolled in any school for the preceding school year, including persons who have received a high school diploma or ~~[high school equivalency]~~ an Excelsior diploma but fail to demonstrate basic educational competencies as defined in regulation by the commissioner, when measured by accepted standardized tests, and who shall be eligible to attend employment preparation education programs operated pursuant to this subdivision.

e. Employment preparation education apportionment. In addition to any other aid payable under this section, the apportionment pursuant to this subdivision shall be the product obtained when the employment preparation education hours are multiplied by the aid per contact hour which shall equal the product of the employment preparation program aid ceiling and the employment preparation education aid ratio computed to two decimals, rounded, as calculated based on data on file with the commissioner on May fifteenth of the base year. Notwithstanding the provisions of section thirty-six hundred nine-a of this part, the payment of such apportionment shall be based upon reports required by the commissioner for the periods ending December thirty-first, and June thirtieth of each school year; payments for the first reporting period shall be made after April first, based on claims on file by March first, provided that the total of all such payments shall not exceed twenty-five percent of the amount for such school year, with the approved amount of such claims reduced on a pro rata basis if necessary; the remainder of any payments due for the first period plus any payments due for the rest of the school year shall be paid after October first, based on claims on file by September fifteenth, provided that the total of such payments shall not exceed the total amount of ninety-six million dollars (\$96,000,000) for such school year, with the approved amount of such claims reduced on a pro rata basis if necessary, provided that the total of such payment for services provided to persons who received a high school diploma or ~~[a high school equivalency]~~ an Excelsior diploma recognized by New York state shall not exceed the total amount set aside for such purpose pursuant to paragraph a-one of this subdivision in any such school year, with the approved amount of such claims reduced on a pro rata basis if necessary; and aid paid pursuant to this paragraph shall not be included in the computation of the district expenditure need as defined in such section thirty-six hundred nine-a of this part. The employment preparation education apportionment for the city school district of the city of New York shall be computed only for the city as a whole.

§ 33. This act shall take effect on the ninetieth day after it shall have become a law; provided, however, that the amendments to section 803 of the correction law made by section ten of this act shall take effect on the same date and in the same manner as section 1 of part EE of chapter 56 of the laws of 2025, takes effect and shall not affect the expiration of such section and shall be deemed repealed therewith; and, provided further, that the amendments to section 58 of the civil service law made by section eleven of this act shall take effect on the same date and in the same manner as section 4 of part C of chapter 55 of the laws of 2025, takes effect. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.